

Council Meeting
September 11, 2024
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The Claremont City Council held a meeting on Wednesday, September 11, 2024, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Brian Zutter
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor William Greenrose
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the August 28th, 2024, City Council meeting.

Voice vote:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Zutter - yes

Hayden – yes

O’Hearne – abstained

Girard – yes

Motion carried 8-0, 1 abstained

MAYOR'S NOTES

Mayor Girard thanked the Fire Department for their display of the 9-11 observance, Mayor Girard asked for a moment of silence.

Claremont clean-up will be hosted by the Ink Factory at 9:00 a.m. Friday morning.

Saturday September 21st, the Kiwanis Club will host the Brewfest and 5K Race.

CITY MANAGER'S REPORT

City Manager Manale updated the sidewalk work on Sullivan Street is almost complete.

Last week the crack sealing contractor was preparing the roads.

Attended a Power Electric Committee Meeting, and discussed which community power companies we should work with, and all agreed we should be joining the Community Power Coalition.

July auction update: the City has approximately \$572,793.00 collected, which has been deposited into our CIP account.

A bench at Veterans Park has been donated by the Emily Bivens Memorial Foundation in honor of Collins Hatch Bivens.

Councilor Koloski stated it was announced one property of the auction was still occupied and wanted to bring attention to this, Manager Manale will look into this.

Councilor Koloski is appreciative of the donation but asked if the donations become budgeted item in the future, and asked who cares for it if there are damages.

Director Martin explained, after accepting a donation it becomes the cities responsibility but knows the foundations are always willing to help.

Councilor O'Hearne is requesting Sullivan Street project information, and asked where this design came from.

Assistant Mayor Matteau noted there is an appointed Planning Board Member that has not attended since June, and typically responds they will be attending via email and then doesn't show up. Assistant Mayor Matteau suggested if this were to continue the Council should remove this member.

CITIZEN'S FORUM

Mayor Girard gave reminder that Citizen's forum is designed to allow you the opportunity to make the Council aware of your concerns. Please state your name and ward number, we ask you to address your concerns directly to the Council. The Council Manager will not be responding to you during this time. You are limited to five minutes on any non-agenda items. In the back of the room please write down your contact information if you'd like to be contacted as well as your concern on the clipboard for follow up.

Deb Snelling, Ward III, was speaking as a Ward III resident and a board member of Frances J. Tolles Home, and noted there are concerns from majority of the trustees. Ms. Snelling described the concerns about appointment applications, and doesn't think re-appointment applicants should write things like "on-File" as this does not give the Council insight on who is applying. Ms. Snelling also held concern for a previous member who received a rejection email, and feels this should have been a letter on City Stationary signed by the Mayor and Council.

Nancy Poirier, Ward III, stated being disappointed in the process- doesn't think Council looked into what the applicants have really done over the years.

Mayor Girard closed Citizens Forum.

OLD BUSINESS

Fee Schedule - Full Gym Rental -Public Hearing

Director Martin, started off by clarifying to the Council when he is referring to full gymnasium it is the basketball Courts not the entire community center, and then explained the process, fees, and advertising.

Memo:

To: City Manager, Mayor, Assistant Mayor & Claremont City Council

From: Justin Martin, Director of Parks and Recreation

Date: 9/5/24

Re: Claremont Parks & Rec. – Full Gym Fee Schedule Addition

CPRD would like to add a full gymnasium option to the fee schedule with the following stipulations:

1. All rental requests will be reviewed by the Recreation Department and City Managers office to ensure that there are no back-to-back rentals.
2. Communication will be issued well in advance to members notifying them of upcoming events in a timely manner.
3. All full gymnasium rentals will be based on 6 hours at minimum for \$1,800.00.
4. Additional hours for full gymnasium rentals will be billed at \$300.00 per hour.

The new fee schedule would read as follows:

CSBCC Room Reservation Fees			
Grand Meeting Room Minimum 6 hrs	Special Event Conf Room (6 hours)		\$470.00
Kitchen Fee	*1 time fee per event		\$55.00
Grand Meeting Room Additional Hour(s)			\$105.00
Function Room A	Regular Rate per hr		\$60.00
Function Room B	Regular Rate per hr		\$80.00
Function Rooms AB	Regular Rate per hr		\$130.00
Function Room C	Regular Rate per hr		\$80.00
Function Room G	Regular Rate per hr		\$45.00
Function Room G (Pool Party)	Regular Rate per hr		\$60.00
Gymnasium (half)	Regular Rate per hr		\$150.00
Gymnasium (full) Minimum 6 hrs	Full Gymnasium Space (6 hours)		\$1800.00
Gymnasium (full) Additional Hour(s)			\$300.00

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Hayden to add full gymnasium into the fee schedule.

Roll call:

**Koloski – yes
Greenrose – yes
Limoges -yes
Matteau – yes
Hemingway –yes
Zutter - yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0**

Ordinance 633 – Zoning Amendment Recycling – Second Reading - Public Hearing

Austin Ford, City Planner gave a brief overview of Ordinance 633.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

SUBSTITUTE ORDINANCE #633

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Amend Sec 22-1, Definitions, to read:

“Recycling facility” shall mean collection, storage and transfer facility which collects, stores and prepares recyclable materials for market and transfers processed recyclable materials to markets for recycling. The term includes "recycling center." The collection, storage and/or transfer of hazardous waste or construction and demolition debris, as defined in this section, is expressly prohibited.

"Construction and demolition debris" means non-putrescible waste building materials and rubble which is solid waste resulting from the construction, remodeling, repair or demolition of

structures or roads. The term includes, but is not limited to, bricks, concrete and other masonry materials, wood, wall coverings, plaster, dry wall, plumbing, fixtures, non-asbestos insulation or roofing shingles, asphaltic pavement, glass, plastics that are not sealed in a manner that conceals other wastes, and electrical wiring and components, incidental to any of the above and containing no hazardous liquid, metals or waste.

“Hazardous Waste” means asbestos waste, garbage, corrugated container board, electrical fixtures containing hazardous liquids such as fluorescent light ballasts or transformers, furniture, appliances, tires, drums and containers, and fuel tanks. It shall also include all substances defined as or determined to be hazardous waste pursuant to RSA 147-A:2VII.

“Water Pollutant” shall mean a chemical or physical agent introduced to any body of water that may detrimentally alter the natural condition of that body of water and other associated bodies of water.

Section 2. Amend Sec. 22-318(4), Special exceptions, to read:

(4) “Recycling facilities subject to receipt and maintenance of permit or license to operate under RSA 149-M from the New Hampshire Department of Environmental Services, Solid Waste Management Division. The collection, storage and/or transfer of hazardous waste or construction and demolition debris is expressly prohibited and not subject to a special exception.”

Section 3. Amend Sec 22-317 – Prohibited Uses, to read:

All uses of land, buildings, structures, or industrial processes that may be noxious by reason of the production or emission into the air or water (both surface and ground) of dust, smoke, refuse matter, odor, gas, fumes, noise, water pollutants, or similar substances or conditions are prohibited in the industry district I. This includes all uses and processes which require use of open stack structures as part of the manufacturing process other than for exhaust of heating and cooling facilities and air circulation and all uses and processes that are not able to be fully contained within a building or structure. This prohibition does not apply to external storage of raw materials or finished product, not contained within a structure, as may be permitted by the planning board as part of the site plan review process.

Section 4. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 5. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 6. Effective Date

This substitute Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to adopt Ordinance 633.

Councilor Koloski read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges -yes

Matteau – yes

Hemingway –yes

Zutter - yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Ordinance 634 School Zones Second Reading - Public Hearing

Chief Wilmot gave brief overview and the recommendations of the Traffic Advisory Committee.

CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

ORDINANCE #634

AMENDING SCHOOL ZONES

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 47:17 and RSA 265:60, the Claremont City Code is hereby amended to revise Chapter 19, Traffic and Motor Vehicles, Article XI, Regulation of Speed Limits on City Streets, as follows:

Section 1. Article XI, Regulation of Speed Limits on City Streets.

Chapter 19, Article XI, Section 19-233, School Zones, is hereby amended and readopted as follows:

Sec. 19-233. School Zones

The following streets shall be designated School Zones, and the maximum speed limit shall be ten (10) miles per hour below the usual posted limit from 45 minutes prior to each school opening until each school opening, and from each school closing until 45 minutes after each school closing:

Maple Avenue School

Sims Street
Canterbury Street
Barton Way
Maple Avenue, between Ballew Street and Bavier Street

Bluff School

Summit Road
Grove Street, between Summit Road and Laurel Street

Disnard Elementary School

Hanover Street, between Dunning Street and Shannon Street
Garden Street
Shannon Street

Claremont Middle School

South Street, between Baker Street and Chase Street

Stevens High School

Summer Street, between Pleasant Street and Broad Street
Middle Street
Broad Street, between Glidden Street and Chestnut Street

Private Schools

Central Street, between Main Street and Pearl Street
Hardy Avenue
McKenzie Drive, between Maple Avenue and Cardinal Lane

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article XI, Section 19-233 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 4. Effective Date.

This Ordinance shall take effect immediately upon passage.

A motion was made by Councilor Limoges and seconded by Councilor Zutter to adopt Ordinance 634.

Councilor Limoges read the explanation of proposed action into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges -yes

Matteau – yes

Hemingway –yes

Zutter - yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Ordinance 635 Barber Street, One-Way Street - Second Reading - Public Hearing

Chief Wilmot explained the proposal was to make Barber Street a one-way road.

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

ORDINANCE #635

“TRAFFIC AND MOTOR VEHICLES”

The City of Claremont Ordains:

Pursuant New Hampshire RSA 47:14 and RSA 265:10, and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-121 (One-Way Streets) of the City of Claremont Code is hereby amended as follows:

Section 1. Chapter 19, Article VI

Section 19-121 (One-Way Streets) is hereby amended to add the following locations:

Barber Street, from Broad Street to High Street, east traffic flow only.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-121 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect immediately upon passage.

A motion was made by Councilor Hayden and seconded by Councilor Zutter to adopt ordinance 635

Councilor Hayden read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Mayor Girard shared concern over angled parking not working.

Councilor Koloski suggested revisiting this when we come back for the revitalization of the park.

A motion was made by Councilor Hayden and seconded by Councilor Zutter to adopt ordinance 635.

Roll call:

Koloski – yes

Greenrose – no
Limoges -no
Matteau – no
Hemingway –no
Zutter - no
Hayden – yes
O’Hearne – no
Girard – no
Motion failed 2-7

NEW BUSINESS

2025-13 Outdoor Recreation Roundtable Rural Grant

Director Martin explained the Outdoor Roundtable Rural Grant.

RESOLUTION 2025-13

Outdoor Recreation Roundtable Rural Grant

BE IT RESOLVED by the City Council of the City of Claremont, New Hampshire, after a public hearing duly noticed, that

WHEREAS the Claremont Parks and Recreation Department (CPRD) would like to accept a grant from the Outdoor Recreation Roundtable in the amount of \$10,000.00 with up to \$1,000.00 in technical assistance to support the rural economic development process.

WHEREAS these funds will be used to hire a firm to engineer, survey and design a site plan for a future trail along the south side of the sugar river connecting the rail trail to down town Claremont via a pedestrian path.

NOW THEREFORE BE IT RESOLVED THAT the City Council hereby authorizes the Parks and Recreation Director or his designees to undertake the acceptance of this grant and to approve the spending of these funds toward hiring a firm to perform engineering, surveying, and designing a site plan (with no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 11 day of September, 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor O’Hearne and seconded by Councilor Greenrose to accept Resolution 2025-13.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Greenrose – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Zutter - yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

COMMITTEE REPORTS

Councilor Greenrose went to his first HDC meeting last night, and noted it was a special meeting because there wasn’t a quorum at the last meeting, and three requests were approved.

CDA met over by service link to look at the water damage and took a mini tour, currently getting estimates to fix it.

Assistant Mayor Matteau noted the Planning Board met on Monday, and 108 pleasant street added one small unit for employee housing.

Councilor Koloski noted the Planning Board decided to look at potentially outdated zoning ordinances.

Councilor Hayden reported for the EPA Steering Committee that Weston and Sampson on the 16th will do more testing. There will be an EPA presence at chili cook-off with preliminary content to help illustrate possibilities and to garner more community interest.

Councilor Hayden also reported on the Conservation Commission that the ecological site is still happening at cat hole, results should be in after first of the new year. Stevens Brook Easement is awaiting paper work sign off

Councilor Hemingway stated the Policy Committee meeting is next week.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Limoges would like to discuss Frances J Tolles Home, has concerns for how meetings are being run, received concerning correspondence from them.

Councilor Koloski would like adopted meeting minutes to be posted of Facebook.

Councilor Koloski would like welcome letters from council to go to new businesses.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:30 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council